

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isabel Cifarelli	Team: Squad #02	CCRB Case #: 202200324	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 01/17/2022 10:05 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/17/2023	Precinct: 120
Date/Time CV Reported Mon, 01/17/2022 1:37 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 01/17/2022 1:37 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Daniel Golat	00482	950506	WARRSEC
2. DT3 Alyssa Krenek	16625	960523	WARRSEC
3. DT3 John Wilkinson	02497	962909	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Daniel Golat	Force: Detective Daniel Golat used physical force against § 87(2)(b)	A . Unable to Determine
B . DT3 Daniel Golat	Abuse: Detective Daniel Golat stopped § 87(2)(b)	B . Within NYPD Guidelines
C . DT3 Daniel Golat	Abuse: Detective Daniel Golat failed to provide § 87(2)(b) with a business card.	C . Unable to Determine
D . DT3 Alyssa Krenek	Abuse: Police Officer Alyssa Krenek failed to provide § 87(2)(b) with a business card.	D . Unable to Determine
E . DT3 John Wilkinson	Abuse: Detective John Wilkinson failed to provide § 87(2)(b) with a business card.	E . Unable to Determine

Case Summary

On January 17, 2022, § 87(2)(b) filed this complaint via the CCRB's website.

On January 17, 2022, at approximately 10:05 a.m., § 87(2)(b) was at work outside the § 87(2)(b) store at § 87(2)(b) in Staten Island when Detective Daniel Golat, Detective John Wilkinson, and Police Officer Alyssa Krenek of the Warrant Section approached him. Detective Golat allegedly pushed § 87(2)(b) twice, moving him inside the store (**Allegation A: Force – Physical force, Unable to Determine; Allegation B: Abuse of Authority – Stop, Within NYPD Guidelines**). § 87(2)(b) allegedly requested business cards from the officers, and they stated that they did not have any (**Allegations C-E: Abuse of Authority – Failure to provide RTKA card, Unable to Determine**). No summonses or arrests resulted from this incident.

There is no known video evidence in this case. A request for body-worn camera (BWC) footage related to this incident yielded negative results (**BR 01**). The officers involved had not been issued BWCs at the time of the incident. Video footage from nearby TARU and NYCHA CCTV cameras was received by the investigation, but they did not capture this incident.

Findings and Recommendations

Allegation (A) Force: Detective Daniel Golat used physical force against § 87(2)(b)

Allegation (B) Abuse of Authority: Detective Daniel Golat stopped § 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB on January 19, 2022 (**BR 02**). Detective Golat was interviewed on March 2, 2023 (**BR 03**), and Detective Wilkinson and Police Officer Krenek, who had been promoted to Detective by the time of her interview, were both interviewed on March 22, 2023 (**BR 04-05**).

§ 87(2)(b) testified that between 9:45a.m. and 10:05a.m., he stood in front of the § 87(2)(b), greeting potential customers as they passed. At approximately 10:05a.m., he observed a large, dark gray van, the passengers of which were staring at § 87(2)(b) driving around the block. The van then parked next to the § 87(2)(b). Detective Golat exited the van and immediately began to walk toward § 87(2)(b) while Police Officer Krenek and Detective Wilkinson remained inside the van. Detective Golat, without saying anything to § 87(2)(b) pushed him with one hand on his lower chest against the door to § 87(2)(b). § 87(2)(b) without reacting physically, asked what Detective Golat was doing, and Detective Golat stated, “You have a warrant, clear it up.” § 87(2)(b) stated that he did not have a warrant. Detective Golat stated, “It’s a domestic, clean it up.” Detective Golat opened the door to the store and asked § 87(2)(b) who worked there. § 87(2)(b) stated that he was the manager, and Detective Golat pushed § 87(2)(b) again, this time through the now-open door. § 87(2)(b) stated again that he did not have any warrants, and Detective Golat told him that it was an I-CARD. Detective Golat called § 87(2)(b) “§ 87(2)(b) § 87(2)(b) replied that his name was not § 87(2)(b). Detective Golat handcuffed § 87(2)(b) and Police Officer Krenek and Detective Wilkinson entered the store as well. § 87(2)(b) repeated that he did not have a warrant, and that the officers should double check that they had the right person. He turned to Police Officer Krenek and told her that he did not know what Detective Golat was talking about, that he had not been involved in a domestic violence situation, and that his name was § 87(2)(b) not § 87(2)(b). After approximately two to three minutes, Detective Golat left the store and returned to the police van. He came back a few minutes later and took the handcuffs off § 87(2)(b) stating, “I’m so sorry, we had the wrong person.”

§ 87(2)(b) described himself to the investigation as a § 87(2)(b) black man with black hair and brown eyes.

Stop, Question, and Frisk report #§ 87(2)(b), prepared by Detective Golat, indicates that the basis for the stop of § 87(2)(b) was an active I-CARD for felony Criminal Contempt and lists “Matches a specific suspect description” as a factor that led to the stop (**BR 06**). The individual stopped was described as a 5’10” tall, 170-pound § 87(2)(b) black male with black hair and brown eyes.

I-CARD # § 87(2)(b) was generated by for “§ 87(2)(b)” by Detective Thomas Caruso of the 120th Precinct Detective Squad on January 12, 2022, and was cancelled on March 14, 2022 (BR 07). It shows that § 87(2)(b) was wanted with probable cause to arrest for Criminal Contempt in the first degree related to a domestic violence case. It describes him as a 6’0” tall, 175-pound § 87(2)(b) black man. A picture of § 87(2)(b) is included, showing him with black hair, brown eyes, and distinctive, downturned, slightly “bulging” eyes.

Detective Golat testified that in the morning of January 17, 2022, he was assigned several I-CARDS and warrants to investigate, as were Detective Wilkinson and Police Officer Krenek. Either Detective Wilkinson or Police Officer Krenek was assigned to an I-CARD for an individual named Denzel § 87(2)(b) wanted for criminal mischief. Detective Golat was in the officers’ van when he observed an individual on the street whom he believed was § 87(2)(b). Detective Golat was not familiar with § 87(2)(b) prior to this incident, but had seen a picture of § 87(2)(b) I-CARD. The description provided on this I-CARD was of a 5’8” to 5’10” tall, 160 to 180-pound black man with a thin body build and distinct “bulging” eyes. To Detective Golat’s recollection, § 87(2)(b) whom he first observed from approximately 20 feet away, fit all of these characteristics, particularly the “bulging” eyes. Detective Golat made the decision to approach § 87(2)(b) because he believed him to be § 87(2)(b) and for no other reason. The operator stopped the vehicle, and Detective Golat exited the vehicle with the intention of apprehending § 87(2)(b) whom he believed to be § 87(2)(b) by stopping him, confirming his identity, then placing him under arrest for criminal contempt. As he did so, § 87(2)(b) looked directly at the officers, turned around, and went into the § 87(2)(b) which heightened Detective Golat’s suspicion. Detective Golat did not interact with § 87(2)(b) at all, verbally or physically, prior to § 87(2)(b) walking into the store. He did not recall whether he pushed § 87(2)(b) at any point. Detective Golat followed him into the store and then placed one handcuff on § 87(2)(b) to prevent escape and ensure the safety of all who were present. § 87(2)(b) told him his full name, which Detective Golat ran for warrants, and it showed that he had an arrest record. A photograph was included in the arrest records, which Detective Golat used to confirm § 87(2)(b)’s identity before removing § 87(2)(b)’s handcuff. During his CCRB interview, Detective Golat was shown the section of the Stop report which lists § 87(2)(b)’s pedigree information, and he stated that he was not positive where that information came from, but it was likely from his own visual perception of § 87(2)(b).

§ 87(2)(g)
§ 87(2)(b). Police Officer Krenek added that she believed that § 87(2)(b) I-CARD was assigned to Detective Golat that morning, and that he identified § 87(2)(b) as § 87(2)(b) using a photo on his phone. Neither Detective Wilkinson nor Police Officer Krenek recalled Detective Golat or any officer pushing § 87(2)(b) or making physical contact with his chest.

The investigation obtained a photograph of § 87(2)(b) from the New York City Department of Corrections’ online Inmate Lookup database (BR 08). The photograph, taken in 2016, when § 87(2)(b) was § 87(2)(b) shows that he shares many similar facial features with § 87(2)(b) as seen in the I-CARD, including downturned, “bulging” eyes.

An officer is justified in stopping an individual if they bear a strong resemblance to a known person who is being sought in connection with a crime, per People v. Reid, 173 A.D.2d 870 (BR 09).

§ 87(2)(g)
§ 87(2)(b) It is therefore recommended that **Allegation A** be closed as **Unable to Determine**.

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(g) . It is therefore recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

Allegation (C) Abuse of Authority: Detective Daniel Golat failed to provide § 87(2)(b) with a business card.

Allegation (D) Abuse of Authority: Police Officer Alyssa Krenek failed to provide § 87(2)(b) with a business card.

Allegation (E) Abuse of Authority: Detective John Wilkinson failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) testified that after Detective Golat removed his handcuffs, the officers began to leave the § 87(2)(b) without offering him business cards. He told them that they could not leave the store until he had their shield numbers, and all three officers provided their shield numbers verbally. He then asked them for business cards. The officers replied that they did not have them.

The Stop, Question, and Frisk report prepared by Detective Golat notes that § 87(2)(b) requested Detective Golat's name and shield and was given them verbally, and that he was offered business cards (**BR 06**).

Police Officer Krenek testified that all three officers offered their business cards to § 87(2)(b) but he stated that he did not want them, he only wanted their shield numbers, which he was provided.

Detective Golat did not recall whether any officer offered a business card to § 87(2)(b) but he stated that, as a matter of practice, he and his partners offer them in interactions like the one they had with § 87(2)(b). Detective Golat was shown the section of the Stop Report which indicates that a business card was offered, and he stated that it did not refresh his recollection. He stated that he prepared the Stop Report immediately after the incident.

Detective Wilkinson did not recall specifically whether business cards were offered to § 87(2)(b) but he had them with him and generally offers business cards to everyone with whom he speaks as a matter of practice.

§ 87(2)(g) . It is therefore recommended that **Allegations C, D, and E** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three other CCRB complaints and has been named as a victim in 22 additional allegations (**BR 10**):
 - § 87(2)(b)
 -
 -
 -
- Detective Golat has been a member of service for 11 years and has been a subject in 12 other CCRB complaints and 33 additional allegations, one of which was substantiated:
 - Case # 201710171 involved a substantiated allegation of entry of premises. The Board recommended Formalized Training, which the NYPD imposed.
- Detective Wilkinson has been a member of service for 11 years and has been a subject in three other CCRB complaints and nine other allegations, none of which were substantiated.

§ 87(2)(g)

- Police Officer Krenak has been a member of service for 7 years and has been a subject in three other CCRB complaints and five other allegations, none of which were substantiated.

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- Mediation was not offered to § 87(2)(b) § 87(2)(g).
- As of November 7, 2022, over 90 days after this incident occurred, the New York City Office of the Comptroller had no record of a Notice of Claim being filed regarding this incident (**BR 11**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 2

Investigator: Isabel Cifarelli Inv. Isabel Cifarelli 04/07/2023
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Opoku-Agyemang 4/7/2023
Signature Print Title & Name Date